NDIS Quality and Safeguards Commission

Our Ref: IR (7) 22/23 and ICM23/100

Tom & Co Legal Pty Ltd

PO Box Z5567

Perth WA 6000

Attention: Mr Tom Monks

By email to: info@tomandcolegal.com.au

Dear Mr Monks

Intention to take into account new information received by the NDIS Quality and Safeguards Commission

Internal review of banning order – Simon Reid

I refer to the email received by the NDIS Quality and Safeguards Commission (the NDIS Commission) on 25 January 2023 requesting an internal review of the decision made on 21 December 2022 to impose a banning order against your client, Mr Simon Reid.

I am the delegate that will be making the decision on the internal review.

I am due to make the internal review decision by 24 April 2023.

Intention to take into account new information and vary banning order

In considering the request for internal review, I have become aware of information not considered by the original delegate relating to Mr Reid's alleged involvement in businesses with links to the NDIS, such as Dream Big Employment Pty Ltd and Vitality WA Pty Ltd. I have set out details of the new information in Attachment A to this letter.

The banning order currently prohibits Mr Reid from providing disability supports and services to NDIS funded participants for a period of five years (effective from 21 December 2022).

Taking into account the information at Attachment A, I intend on varying the banning order against Mr Reid to make it explicit that he is to have no involvement with or in the NDIS sector, in any capacity. This includes being prohibited from providing labour hire workers to support NDIS providers or providing support, funding, guidance or assistance of any form to an NDIS provider.

I am writing now to give your client the opportunity to make any submissions to me in relation to both this information and my proposed variation to the terms of the banning order.

If your client wishes to make submissions, please provide them by email to review@ndiscommission.gov.au **by 5pm on 5 April 2023**. If no submissions are received by this date, I will proceed to make the internal review decision.

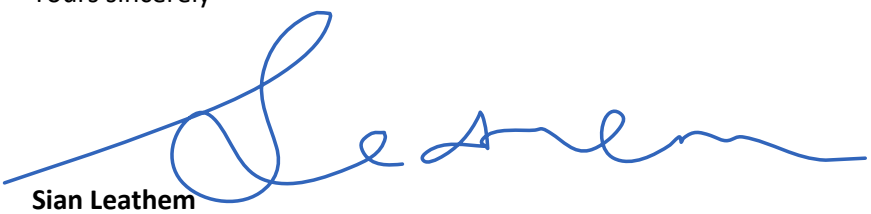
If your client wishes to request additional time to provide submissions, please submit such a request via email to review@ndiscommission.gov.au **by 31 March 2023.**

If your client chooses to make submissions, he should be aware that giving false and misleading information to the NDIS Commission is a serious offence.

Contact details

Should you have any queries about this matter, you can contact Ms Pascal Moussa by telephone to 02 9942 5726 or by email to pascal.moussa@ndiscommission.gov.au

Yours sincerely



Sian Leathem

Complaints Commissioner Executive

NDIS Quality and Safeguards Commission

22 March 2023

Encl: Attachment A

Attachment A: New information

(1) Information indicating involvement of Simon Reid in Vitality WA Pty Ltd

Email dated 9 February 2023 from Mr Reid to several recipients in relation to working for his business, Vitality WA Pty Ltd.

(2) Information indicating involvement of Simon Reid in Dream Big Employment Pty Ltd

'Form 201 - Application for registration as an Australian company' submitted by Mr Reid on 29 October 2022 to the Australian Securities and Investments Commission in relation to Dream Big Employment Pty Ltd.

Sworn statement of Cassandra Burke dated 16 February 2023 provided to the National Disability Insurance Agency, namely paragraphs 45 to 72.



Sent from my Galaxy

-------- Original message --------
From: simon reid <simon@vitalitywa.au>
Date: 9/2/23 1:43 pm (GMT+08:00)
To: nakita.toia@outlook.com, pushpinder9096@gmail.com, malikadulal917@gmail.com, omgjaimi@outlook.com, Louis7r@yahoo.com, ousmanrock245@live.com.au, allyolly2002@icloud.com, k8e1984@gmail.com, workprac2@ffg.net.au, dusharidesilva@yahoo.com, reid.simon4@gmail.com, mel-holland2011@hotmail.com, 17josephine@gmail.com, elspethaverill@hotmail.com, ds069@bigpond.com, megancaruana@hotmail.com, pauldavidnieman@gmail.com, ema_gbi@hotmail.co.nz, nai_ruth17@hotmail.com, kirtybijal@outlook.com, djamilaraimundo4@gmail.com, kleva73@yahoo.com.au, becology46@hotmail.com, acostavalentina24@gmail.com, tempajiggme@gmail.com, gilbertjanson1484@gmail.com, jl.thomas.2@hotmail.com, ismailzia@gmail.com, Yash62softa@gmail.com, paruluppal1@gmail.com, kpatarcanmue@gmail.com, noradawo2017@gmail.com, kanchanasen@hotmail.com, bobbymatharu8@gmail.com, ashlee_suckling@outlook.com, dojazcrabbe@gmail.com, kildahlmichelle9@gmail.com, helpinghands.paula@outlook.com, Chelseaaktv@outlook.com, ofureibhariai@yahoo.com, kutingarang@gmail.com, smileigh_1978@hotmail.com, emmanuelkindu6@gmail.com, greennsw@gmail.com, teeganmoloney95@icloud.com, farbod100zare@gmail.com, hannahkehoe4@outlook.com, alat.boc247@hotmail.com, findabetty2009@yahoo.com.au, bran.tier01@outlook.com, ashleighkristenoleksiuk@gmail.com, jessicaromano2017@outlook.com, yolandalavercombe4@gmail.com, adutabdalla_124@hotmail.com, ramonanetai@gmail.com, billyykata@gmail.com, naminabangura81@gmail.com, courtneyellabolton@gmail.com, hawa180@hotmail.com, senkweeunice7@gmail.com, louise.ireland68@outlook.com, synoe05@gmail.com, mutalephiri@gmail.com, nziza15.sam@gmail.com, kemiojo16@gmail.com, aluelkutin@gmail.com, 1gracephilips18@yahoo.com, gugulethuvmaseko@gmail.com, rooboy0365@yahoo.com, has.jaya6677@gmail.com, taramartin2705@gmail.com, 1emmaleastrauch2001@gmail.com, wanievigian80@gmail.com, Feebs01@live.com.au, charlessarah00@gmail.com, kazza1003@hotmail.com, micknovk@gmail.com, AditSandra@hotmail.com, madeleinedawson91@gmail.com, neerugarry84@gmail.com, sheemaashams@gmail.com, allyonapally@hotmail.com, c_stickland73@hotmail.com, 12letdebbielite@iinet.net.au, bismyfromeo@gmail.com, 1.girl@gmail.com, Chymax81@yahoo.com, estheroadedokun@gmail.com, ishraque95@outlook.com, normanandalejandro082710@gmail.com, gaganbajwa30@yahoo.com, justinhussell7@gmail.com, mateo.deleon@yahoo.com, Planetbarun@yahoo.com, nduogbodo2@yahoo.com, garettstanford@hotmail.com, shanaspaulding@gmail.com, choezom84@gmail.com, mshanahan@mcgrathnicol.com, fester@gmail.com, tori.vince03@hotmail.com, edmundtawiah1978@gmail.com, blakesadler16@gmail.com, manfredmwape@yahoo.com
Subject: employment Oppurtunities in the disability sector

Dear Disability worker,

I hope this email finds you well. My name is Simon and I am writing to express my interest in recruiting talented and compassionate individuals like yourself for a unique opportunity in the field of disability support.

At Vitality Employment , we are dedicated to providing exceptional support services to disability providers, helping their clients to lead fulfilling and independent lives. We are currently expanding our team and are seeking passionate and experienced individuals to join us in this mission.

As a Disability Support Worker, you will have the opportunity to make a real difference in the lives of those you support. You will be responsible for providing day-to-day support to people with disabilities, helping them with activities of daily living, social and recreational activities, and any other tasks required to enhance their quality of life.

Key responsibilities include:

- Providing personal care and support to individuals with disabilities
- Assisting with daily living activities, such as meal preparation and housekeeping
- Supporting individuals in accessing community services and participating in recreational activities
- Building positive relationships with individuals, their families and other stakeholders

To be considered for this role, you should possess the following skills and qualifications:

- A genuine passion for working with people with disabilities
- Previous experience in a similar role, either paid or voluntary
- Excellent communication and interpersonal skills
- The ability to work effectively as part of a team
- A positive and flexible approach to work
- A current First Aid certificate and a National Police Check
- Working with children
- NDIS worker screening check

If you are looking for a challenging and rewarding career in the field of disability support, I would love to hear from you. Please send your updated resume and a brief cover letter highlighting your suitability and availability for the role to simon@vitalitywa.au .

I look forward to hearing from you soon and to the possibility of welcoming you to our team at Vitality WA.



Simon R
Director, Vitality Employment Services

43 william street, Armadale, WA 6112
0409751638 0409751638 simon@Vitalitywa.au
Vitalitywa.au

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VITALITY WA

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T65.1

Australian Securities &

Investments Commission

Document No. **4EAB86303**

Form 201

Corporations Act 2001
117

Application for registration as an Australian company

Record of online transaction

Lodgement details

Who should ASIC contact if there is a query about this form?

Given names	SIMON
Family name	REID
Address line	96 AMETHYST CRES
Address line	MOUNT RICHON WA 6112
Country	AUSTRALIA
Email address	simon@ffg.net.au
Date submitted	29/10/2022 (D D / M M / Y Y Y Y)
Time submitted	18:25:40

State/territory of registration

I apply for registration of the company under the *Corporations Act 2001* and nominate the State or Territory in which the company will be taken to be registered.

WA State or Territory

Details of the company

Does the company have a proposed company name?

X Yes

Proposed company name: DREAM BIG EMPLOYMENT PTY LTD.

Is the proposed name identical to a registered business name(s)?

X No

Type of company

X Proprietary company

Class of company

X Limited by shares

Registered office

Address line: UNIT 2 NUMBER 210 JULL STREET

T65.1

Address line: ARMADALE WA 6112

Does the company occupy the premises?

X Yes

Principal place of business

X Same as registered office

Appoint officeholder

Office held

X Director

X Secretary

Given names: VIRGINIE SHARON

Family name: FANNY-DULLOO

Address line: 2/210 JULL STREET

Address line: ARMADALE WA 6112

Country: AUSTRALIA

Date of birth: 11/01/1984 (D D / M M / Y Y Y Y)

Place of birth (town/city): (state/country): MAURITIUS

Ultimate holding company

Will the company have an ultimate holding company upon registration?

X No

Details of share structure

Details of the shares issued by the company:

Share class code	Full title if not standard	Total number of shares	Total amount paid on these shares	Total amount unpaid on these shares
ORD	ORDINARY	100	$100.00	$0.00

Are any of these shares issued other than for cash?

Yes X No

Details of members

Member details and shareholding

Share class code	Number of shares taken up	Amount agreed to pay per share	Total $ paid on these shares	Amount unpaid per share	Total $ unpaid on these shares	Fully paid (y/n)	Beneficially held (y/n)
ORD	100	$1.00	$100.00	$0.00	$0.00	Y	N

Given names: VERONICA

Family name: REID

T65.1

Address line	40 GALLIERS AVE
Address line	ARMADALE WA 6112
Country	AUSTRALIA

Declaration by applicant

Given names	SIMON
Family name	REID
Address line	96 AMETHYST CRES
Address line	MOUNT RICHON WA 6112
Country	AUSTRALIA
Email address	simon@ffg.net.au

Declaration:

X I/we apply for registration of a company on the basis of the information in this form and any attachments. I/we have the necessary written consents and agreements referred to in the application concerning the members and officeholders and I/we shall give the consents and agreements to the company after the company becomes registered. The information provided in this application and in any annexures is true and correct at the time of signing.

Signature

Name of person signing	SIMON REID
Date signed	29/10/2022 (D D / M M / Y Y Y Y)

Statement

Sensitive

Statement in the matter of R v Vida REID

Name	Cassandra Lee Burke
Occupation	Support Coordinator
Address	Known to National Disability Insurance Scheme (NDIS)
Date	16 February 2023

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Cassandra Lee Burke. I prefer to be called Cassie. I am 30 years of age. My residential address is known to the National Disability Insurance Agency (NDIA).

3. I am a support Coordinator and work for Access Disability Services. I have been employed at Access since October 2022.

4. Prior to that I worked at Forward Focus Group (FFG). I started work there in June or July of 2022 and I was employed as a Support Coordinator.

5. I know Vida REID. I first met Vida on my first day at FFG. My first impression of Vida was that she was very friendly, she was kind, caring, friendly and I can remember thinking 'what a cool boss'. She also put off a really successful vibe.

6. Initially, I was a receptionist but after three weeks I was promoted to Support Coordinator.

7. When I started, I was given a surface pro and a mobile. Someone in the business created an email address for me and a password for my phone, which was all

Signature

Witness

zero's. We were told we were not allowed to change the passwords or take our surface pro or mobile home.

8. Everyone knew that the IT team could access our computers remotely. I don't know where the IT team was based, but I remember whenever we had any IT issue Vida would give us a number to call and tell us to ask for the orange team and they would fix it.

9. I remember that when rumours started about an investigation, a lot of weird stuff started happening at work.

10. I remember that we were always required to work from the office, and we were never allowed to take our surface pros home.

11. Then one day I remember Vida called a staff meeting. Everyone gathered in a meeting room in the office and Vida said, "Simon and I have been talking and we've decided we are going to do a trial of letting you work from home. This is Simon's idea, I'm not for working from home but I love and trust you guys so I've agreed to do a trial."

12. She said, "On days you are working from home, you are not to come into the office. If you need anything from the office you need to call ahead and get permission to come in."

13. I remember being initially exciting, but when she said we weren't allowed to come into the office I thought something was a bit off.

14. The meeting occurred on Friday the 30th of September 2022. I recall this because I sent a text message to my partner, which read "We just had a staff meeting. For the next 2 or 3 weeks, they haven't decided yet, we will all be made to work from home. If it's successful there will be select staff that they buy office stuff for and extra screens so we can work from home."

15. On Tuesday the 4th of October I had the following text conversation with my partner – Jarrod.

16. Jared said, "Anything said about this 3-week working from home stuff?"

17. I replied, "Nah nothing but she did address the fraud claims in this morning's meeting.

18. Jared said, "Oh… And?"

19. I replied, "She said there is legal action being taken because they are just malicious claims and defamation from other company and someone called Andrew Halls from the NDIS and they its gone to the commission and will probably be on the news but that she assures us it's just allegations and not to worry."

I am able to produce these text messages
TENDERED AND MARKED EXHIBIT NUMBER .....

20. At some point not long after the 30th of September 2022, I worked two days at home. I remember that some staff did not work from home. I recall that Blake, Torri and Ozzie all remained in the office.

21. On the second day at home, I started to get messages from other staff telling me that they had been told to go back into the office. I remember being a bit worried, wondering if those who had not been contacted still had jobs.

22. I remember getting a phone call from Ozzie, who told me I had to go back into the office.

23. I remember another occasion, all staff were told to leave their surface pro's on Alex Bower's desk before we went home. I remember that they printed all our names on a little machine and stuck them on our computers when we handed them in.

24. I recall sending a text message to my partner saying, "Laptops are being taken again."

I am able to produce these text messages
TENDERED AND MARKED EXHIBIT NUMBER .....

25. The next day we all came back in, and our computers were waiting on the reception desk. We just grabbed them and went back to work like nothing had happened.

26. Throughout my time as a support coordinator, I managed about 18 participants.

27. With email messages, it was common for Vida to change what we had written before sending the email. For example, after Vida's arrest, she instructed all staff who had come back to the office to email our local member of parliament to say that the allegations made against the company we work for are seriously affecting us and our jobs, that we had families, and we were scared we would lose our jobs.

28. Vida instructed all staff to prepare a draft and send it to her. She would alter things in the email and then send it back with instructions to send it.

29. I remember that I didn't even want to write the email, and I remember that Vida changed my email with some better words to make it read more like a sob story. Then she sent it back to me and told me to send it.

30. I would say that no one could be confident that an email received from an FFG employee had been written by the person who's signature block appeared at the bottom of it. All emails were subject to change by Vida.

31. I remember on 25 October 2022, I remember Paul Ugwunali came into the FFG office and met with Vida. Vida then told Ashleigh to go into the office with Paul and they had a meeting. Ashleigh came out and Vida asked me to go in.

32. Vida introduced me to Paul and told me that he had a disability support company and that she was very sorry, but things were so unstable that she couldn't offer me work anymore, but Paul was willing to put me on full time if I signed the contract that day and I could take my clients with me.

33. Vida then left and I signed the contract with Paul.

34. Paul then said, "Can you please get your client information?"

35. I went and got my surface pro, returned to the meeting room and tried to log into Care View but I was locked out.

36. I told Paul that something was wrong, I didn't think at that time I had been locked out, more that there was an IT problem.

37. Paul just said, "No Problem."

38. I went back to my desk and later said to Blake Saddler, "There is something wrong with Care View, I can't log in."

39. Blake said, "Yean, I had to lock you out, just for now."

40. I said, "Why?"

41. Blake said, "Vida has to sort some clients out."

42. So I just sat there for the rest of my shift and the next day I started at Access Disability Services.

43. At first, I was scared when I started to work for Paul. He had no computers, and we weren't confident that the job would last. But over time, we found him to be an open book, completely different to Vida, where he would gave us access to everything and it was obvious he had hired us to grow his business.

44. Paul is a deeply religious man and I remember him saying, "if we just pray together and trust in God and work together this business will grow." He has been a pleasure to work for.

45. While I have been working at Access, I have had two participants who have left our service to go to 'Vida and Simon'.

46. One of these participants was Jonathon Shapiera. While I was coordinating supports for Jonathon, I remember that his plan was changed from agency

managed to plan managed. I was very confused because I did not apply for that and didn't understand how it could happen without my knowledge as his support coordinator.

47. This was confusing for me because I had previously spoken to Nathan Halls at the NDIA who had explained to me that Jonathon was agency managed, and that as long as we were registered providers we would be OK to coordinate supports because he had plenty of funding.

48. I recall getting a visit from participant Jonathon Shapiera here at Access Disability. Jonathon was a client of ours and was residing in Vida's house Safety Bay. It's called Malibu House. This meeting was on or about the 15th of November 2022.

49. I remember him giving me a list of things he wanted me to do as his coordinator. He wanted me to buy him a mobile phone to monitor his diabetes. He also wanted a new internet provider. He also wanted a shower chair and he wanted modification made to the house. I explained that I would look into it but that I wasn't confident that the requests could be supported by his plan.

50. He said, "Not a problem, I just want to get these things sorted before Blake takes over as my coordinator."

51. I said, "What do you mean until Blake takes over as your coordinator."

52. He said, "He's going to be running a company for Vida and Simon called Dream Big." That was the first time I had ever heard of Dream Big.

53. I said, "OK, If you are going to leave me as your coordinator, you need to give me two weeks' notice and something in writing."

54. He then sent me an email terminating services with us on 1 December 2022 at 4.53pm.

I am able to produce the email from Jonathon from email address jc.shapiera@gmail.com at 4.53pm on 1 December 2022.

TENDERED AND MARKED EXHIBIT NUMBER .....

55. I also remember calling Pamela Cricelli, who is the mother of participant Giuseppe Cricelli. I explained I was working as a coordinator for Access Disabilty services and asked her if she was still looking for a coordinator.

56. Pamela told me that she was, so I sent her all the forms and I signed her up.

57. Giuseppie's plan was a new plan and needed a plan review. On 9 December 2022, I emailed Pamela and explained that I had sought an increase in funding, but it had been rejected due to insufficient evidence.

I am able to produce the email I sent to Pamela Cricelli at pamela.cricelli@hotmail.com on 9 December 2022 at 10.55am
TENDERED AND MARKED EXHIBIT NUMBER .....

58. I received a reply to my email on 10 December 3.53pm. Pamela explained that she wanted to cancel Giuseppi's contract with me as she was going back to Vida and Simon.

I am able to produce the email sent from Pamela Cricelli pamela.cricelli@hotmail.com on 10 December 2022 at 3.53pm
TENDERED AND MARKED EXHIBIT NUMBER .....

59. On 1 December 2022, I was out the front of the officer in Jull street. Virginie Fannie Dulloo walked past and said hello and we had a general conversation. While we were talking, Vida walked over and said, "Hey Girl. How you going? How's Paul?"

60. I said, "Good, we're getting there slowly."

61. She said, "What's Paul doing for you girls for Christmas?"

62. I said, "I don't know, probably nothing."

63. She said, "Well I have something to ask you. I would like you to come and work for my new company."

64. I said, "As what?"

65. She said, "As a coordinator. And how does a holiday for you and your partner to Rottnest Island for Christmas sound?"

66. I said, "It sounds good, but I don't know that I can leave Paul."

67. She said, "Well how much is he paying you."

68. I said, "$75,000." This was a lie and I said it because I didn't want to leave Paul and I knew she wouldn't pay that.

69. Virginie said, "We can't afford that."

70. Vida said, "Well don't say no. Think about it over Christmas, your start date would be the 9th of January."

71. I said, "OK, I'll think about it."

72. I knew that Vida and Virginie were referring to Dream Big because I had heard that Vida and Simon REID had started the new company, and I had reported it to the NDIA on two separate occasions, one via the Fraud Hotline and the other in an email and phone conversation to Nathan Halls at the NDIA.

73. I came straight into the office and told Paul. Later that day I sent a text message to my partner saying, "The Big Dreams company just offered me a job. Start on the 9th of the 1st. I said no thanks and they said I was mad for staying with Paul. They even tried to bribe me with a trip to Rottnest Island.

I am able to produce this text message
TENDERED AND MARKED EXHIBIT NUMBER .....

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Signature

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Witness

74. On 16 February 2023, NDIA Investigators Bruce Graydon and Narelle Richardson visited out office in Jull Street.

75. I had a conversation with them, and as a result I provided Bruce with this statement.

This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Cassandra Lee Burke

Statement taken and signature witnessed by me about 4pm on 16 February 2023 at Perth in Western Australia.

Signature _____
Bruce GRAYDON
NDIS Fraud Investigator